SERVICES AGREEMENT

This Agreement is made and entered into on this 14th day of May, 2020 at Kolkata.

BETWEEN

M/s Ganga Constructions Limited, a company incorporated under the Companies Act, 1956, CIN: U45201WB2004PLC099812, having its registered office at 92, Salt Lake, Kolkata - 700091, represented by its Managing Director Shri Amitava Ghosh

... hereinafter the Party of the First Part / the Company

AND

M/s Everest Engineering Works Private Limited, a company incorporated under the Companies Act, 1956, CIN: U29253WB2007PTC114402, having its registered office at 7, Park Street, Kolkata - 700016, represented by its Director Shri Debashish Sen

... hereinafter the Party of the Second Part / the Contractor

WHEREAS the Company is engaged in the business of civil construction and has been awarded a works contract for the construction of a residential complex at New Town, Kolkata;

AND WHEREAS the Contractor is engaged in the business of structural steel fabrication and erection and has represented that it possesses the requisite expertise, manpower and equipment;

NOW THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

1. SCOPE OF WORK. The Contractor shall carry out the fabrication and erection of structural steel work for Towers A and B as more particularly described in Annexure I hereto.

2. CONTRACT VALUE. The total contract value shall be Rs. 8,40,00,000/- (Rupees Eight Crore Forty Lakh only), exclusive of applicable Goods and Services Tax.

3. TERM. This Agreement shall remain in force for a period of thirty months from the date hereof, unless earlier terminated in accordance with clause 12.

4. PAYMENT TERMS. The Company shall pay running account bills within thirty days of certification by its engineer. Retention money at the rate of 5% shall be released on issue of the completion certificate.

8. OBLIGATIONS OF THE COMPANY. The Company shall hand over clear and unencumbered access to the site within fifteen days of the date hereof and shall obtain all statutory approvals.

11. INDEMNITY. Each party shall indemnify and hold harmless the other against any claim arising from its own breach of this Agreement.

12. TERMINATION. Either party may terminate this Agreement by giving sixty days' prior written notice in the event of a material breach that remains uncured for thirty days after notice thereof.

14. CONFIDENTIALITY. Neither party shall disclose the terms of this Agreement or any technical or commercial information of the other to any third party without prior written consent.

22. ARBITRATION. Any dispute or difference arising out of or in connection with this Agreement shall be referred to arbitration by a sole arbitrator to be appointed by mutual consent, under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Kolkata.

23. GOVERNING LAW AND JURISDICTION. This Agreement shall be governed by and construed in accordance with the laws of India. The courts at Kolkata alone shall have exclusive jurisdiction.

IN WITNESS WHEREOF the parties have executed this Agreement on the day and year first above written.

For M/s Ganga Constructions Ltd. For M/s Everest Engineering Works Pvt. Ltd.

WITNESSES:

1. Shri Subrata Banerjee, Advocate, R/o Ballygunge, Kolkata
2. Smt. Rina Dutta, Company Secretary, R/o Behala, Kolkata